

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO. 36C261-26-AP-2120		PAGE 1 OF 73	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C26126Q0357	
						6. SOLICITATION ISSUE DATE 02-11-2026	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME David J. Alvarez				b. TELEPHONE NO. (No Collect Calls) 916-923-4564	
						8. OFFER DUE DATE/LOCAL TIME 02-23-2026 10:00 AM PST	
9. ISSUED BY Department of Veterans Affairs VA Sierra Pacific Network (VISN 21) Network Contracting Office (NCO) 21 3237 Peacekeeper Way, Bldg 209 McClellan Park CA 95652				10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: 532283 ☐ HUBZONE SMALL BUSINESS ☐ EDWOSB ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ 8(A) SIZE STANDARD: \$41 Million			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ☐		13b. RATING N/A	
						14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP	
15. DELIVER TO See Performance Work Statement				16. ADMINISTERED BY Department of Veterans Affairs Network Contracting Office (NCO) 21 3237 Peacekeeper Way, Bldg 209 McClellan CA 95652			
17a. CONTRACTOR/OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY	
						Department of Veterans Affairs FMS VA-9(101) Financial Services Center PO Box 149971 Austin TX 78714-9971 PHONE: FAX:	
TELEPHONE NO. UEI: EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER							
19. ITEM NO.		20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY		22. UNIT	
		Contractor shall provide Home Oxygen Services in accordance with the Performance Work Statement herein. Period of Performance: Ordering Period One: 4/1/2026 - 3/31/2027 Ordering Period Two: 4/1/2027 - 9/30/2028 (Use Reverse and/or Attach Additional Sheets as Necessary)				23. UNIT PRICE	
						24. AMOUNT	
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED.	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) David J. Alvarez Contracting Officer		31c. DATE SIGNED	

Table of Contents

SECTION A	1
A.1 SF 1449 SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES.....	1
SECTION B - CONTINUATION OF SF 1449 BLOCKS	3
B.1 CONTRACT ADMINISTRATION DATA.....	3
B.2 PRICE/COST SCHEDULE	4
ITEM INFORMATION	4
B.3 PERFORMANCE WORK STATEMENT	15
SECTION C - CONTRACT CLAUSES	47
C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)	47
C.2 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)(DEVIATION OCT 2025)	48
C.3 52.216-18 ORDERING (AUG 2020).....	54
C.4 52.216-19 ORDER LIMITATIONS (OCT 1995)	54
C.5 52.216-22 INDEFINITE QUANTITY (DEVIATION) (NOV 2025)	55
C.6 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)	55
C.7 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION).....	56
C.8 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)....	65
C.9 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020).....	65
SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS	67
SECTION E - SOLICITATION PROVISIONS.....	68
E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998).....	68
E.2 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)(DEVIATION OCT 2025)	68
E.3 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)(DEVIATION NOV 2025)	70
E.4 52.216-1 TYPE OF CONTRACT (DEVIATION) (NOV 2025).....	71
E.5 52.233-2 SERVICE OF PROTEST (SEP 2006)(DEVIATION NOV 2025).....	72
E.6 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)	72
E.7 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)(DEVIATION OCT 2025).....	72

SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C261

Department of Veterans Affairs

VA Sierra Pacific Network (VISN 21)

Network Contracting Office (NCO) 21

3237 Peacekeeper Way, Bldg 209

McClellan Park CA 95652

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Upon Delivery and Government Acceptance

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

www.fsc.va.gov/einvoice.asp

<http://www.tungsten-network.com/US/en/veterans-affairs/>

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

The Contractor shall provide Home Oxygen Services for the Department of Veterans Affairs in accordance with the specifications listed herein.

The guaranteed minimum award amount for this contract is \$1,000.00. The maximum aggregate value of orders that can be placed under this contract is \$9,000,000.00. The Government does not guarantee that it will place any orders under this contract in excess of the guaranteed minimum award amount.

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001		8,400.00	MO		
	Rental of Contractor Owned Portable Concentrator System (Freestyle). HCPCS CODE E1392. Concentrator, Colored Tubing, Adapter Humidifier (when required), Cannulas or Masks and other required supplies and equipment, including back up systems. Perform Equipment Maintenance in accordance with manufacturer standards. At a minimum of once every 90 calendar days, visit and assess patient to assure equipment complinace, change filters and provide disposable supplies. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
0002		960.00	MO		
	Rental of Contractor Owned Portable Concentrator System (Oxlife or IGO) Priced Per Month. HCPCS CODE E1392. Concentrator, Colored Tubing, Adapter Humidifier (when required), Cannulas or Masks and other required supplies and equipment, including back up systems. Perform Equipment Maintenance in accordance with manufacturer standards. At a minimum of once every 90 calendar days, visit and assess patient to assure equipment complinace, change filters and provide disposable supplies. Contract Period: Base POP Begin: 04-01-2026				

POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
0003	19,200.0 0	MO	
Rental of Contractor Owned Low Decibel Concentrator System Priced Per Month. HCPCS CODE E1390. To include all supplies, equipment maintenance and 90 calendar day visit as described in Item 1. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
0004	1,440.00	MO	
Rental of Contractor Owned Hi Flow Concentrator System Priced Per Month. HCPCS CODE E1390. To include all supplies, equipment maintenance and 90 calendar day visit as described in Item 1. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
0005	11,400.0 0	MO	
Rental of Contractor Owned Portable O2 Gaseous System for use with or without Stationary System Priced Per Month. HCPCS CODE E0431. Portable System, Regulator, Flowmeter, Humidifier, Cannulas, or Masks, Tubing, Conserving Device and O2 Tank Cylinder Stands capable of holding 12 cylinders, sizes E, D, C & M-6. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies			

MANUFACTURER PART NUMBER (MPN): N/A			
0006	420.00	MO	
Rental of Contractor Owned Stationary Liquid O2 System Priced Per Month. HCPCS CODE E0439. Reservoir, Regulator, Flowmeter, Humidifier, Cannulas or Masks, and Colored Tubing. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
0007	192.00	MO	
Rental of Contractor Owned Portable Liquid O2 System Priced Per Month. HCPCS CODE E0434. Portable Container, Refill Adapter Flowmeter, Cannulas or Masks, and Colored Tubing. Reservoir will be provided if another Stationary System (e.g. Concentrator) is rented. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
0008	288.00	MO	
Suction Pump Rental Priced Per Month. HCPCS CODE E0600. Delivery, Set-up, and Training of Contractor Owned Suction Pump to Include all supplies. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
0009	24.00	MO	
Rental of Contractor Owned Volume Ventilator Priced Per Month. HCPCS CODE E0465. Delivery, Set-up, Training, and Maintenance of Contractor Owned Stationary or Portable Ventilator, to include back up Ventilator and all			

				supplies. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A
0010	108.00	MO		
				Air Compressor Priced Per Month. HCPCS CODE E0570. Rental of Contractor Owned and Maintained continuous or intermittent air compressor for use with equipment not self contained or cylinder driven, to include all associated supplies. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A
0011	120.00	EA		
				Delivery Charge Priced Per Each. HCPCS CODE A9901. Deliveries not made under all other line items. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A
0012	9,600.00	MI		
				Delivery Charge Priced Per Mile. HCPCS CODE A9901. Delivery out of catchment area, per mile. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A

0013	1,800.00	EA		
Fire Safe Cannula Valve Priced Per Each. HCPCS CODE VA186. Delivery, Set-up of FSCV. Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
1001	4,260.00	MO		
Rental of Contractor Owned Portable Concentrator System (Freestyle). HCPCS CODE E1392. Concentrator, Colored Tubing, Adapter Humidifier (when required), Cannulas or Masks and other required supplies and equipment, including back up systems. Perform Equipment Maintenance in accordance with manufacturer standards. At a minimum of once every 90 calendar days, visit and assess patient to assure equipment complinace, change filters and provide disposable supplies. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
1002	504.00	MO		
Rental of Contractor Owned Portable Concentrator System (Oxlife or IGO) Priced Per Month. HCPCS CODE E1392. Concentrator, Colored Tubing, Adapter Humidifier (when required), Cannulas or Masks and other required supplies and equipment, including back up systems. Perform Equipment Maintenance in accordance with manufacturer standards. At a minimum of once every 90 calendar days, visit and assess patient to assure equipment complinace, change filters and provide disposable supplies. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				

1003	9,720.00	MO		
Rental of Contractor Owned Low Decibel Concentrator System Priced Per Month. HCPCS CODE E1390. To include all supplies, equipment maintenance and 90 calendar day visit as described in Item 1. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
1004	744.00	MO		
Rental of Contractor Owned Hi Flow Concentrator System Priced Per Month. HCPCS CODE E1390. To include all supplies, equipment maintenance and 90 calendar day visit as described in Item 1. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
1005	5,730.00	MO		
Rental of Contractor Owned Portable O2 Gaseous System for use with or without Stationary System Priced Per Month. HCPCS CODE E0431. Portable System, Regulator, Flowmeter, Humidifier, Cannulas, or Masks, Tubing, Conserving Device and O2 Tank Cylinder Stands capable of holding 12 cylinders, sizes E, D, C & M-6. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
1006	216.00	MO		
Rental of Contractor Owned Stationary Liquid O2 System Priced Per Month. HCPCS CODE E0439. Reservoir, Regulator, Flowmeter, Humidifier, Cannulas or Masks, and Colored Tubing.				

		Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A	
1007	96.00	MO	
		Rental of Contractor Owned Portable Liquid O2 System Priced Per Month. HCPCS CODE E0434. Portable Container, Refill Adapter Flowmeter, Cannulas or Masks, and Colored Tubing. Reservoir will be provided if another Stationary System (e.g. Concentrator) is rented. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A	
1008	144.00	MO	
		Suction Pump Rental Priced Per Month. HCPCS CODE E0600. Delivery, Set-up, and Training of Contractor Owned Suction Pump to Include all supplies. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A	
1009	12.00	MO	
		Rental of Contractor Owned Volume Ventilator Priced Per Month. HCPCS CODE E0465. Delivery, Set-up, Training, and Maintenance of Contractor Owned Stationary or Portable Ventilator, to include back up Ventilator and all supplies. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies	

MANUFACTURER PART NUMBER (MPN): N/A			
1010	60.00	MO	
Air Compressor Priced Per Month. HCPCS CODE E0570. Rental of Contractor Owned and Maintained continuous or intermittent air compressor for use with equipment not self contained or cylinder driven, to include all associated supplies. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
1011	60.00	EA	
Delivery Charge Priced Per Each. HCPCS CODE A9901. Deliveries not made under all other line items. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
1012	4,920.00	MI	
Delivery Charge Priced Per Mile. HCPCS CODE A9901. Delivery out of catchment area, per mile. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
1013	1,020.00	EA	
Fire Safe Cannula Valve Priced Per Each. HCPCS CODE VA186. Delivery, Set-up of FSCV. Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2026 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental			

PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
00R1	31,800.0 0	CY	_____
E Cylinder Refill. HCPCS CODE E0443 Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
00R2	8,400.00	CY	_____
D Cylinder Refill. HCPCS CODE E0443 Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
00R3	15,000.0 0	CY	_____
C Cylinder Refill. HCPCS CODE E0443 Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
00R4	0.00	CY	_____
M-6 Cylinder Refill. HCPCS CODE E0443 Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			

00R5	300.00	CY		
M-90 Tank Refill. HCPCS CODE E0443 Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
00R6	60,000.0	LB		
	0			
Liquid Oxygen Refill. HCPCS CODE E0444 Contract Period: Base POP Begin: 04-01-2026 POP End: 03-31-2027 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
10R1	16,200.0	CY		
	0			
E Cylinder Refill. HCPCS CODE E0443 Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2028 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
10R2	4,350.00	CY		
D Cylinder Refill. HCPCS CODE E0443 Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2028 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A				
10R3	7,650.00	CY		
C Cylinder Refill. HCPCS CODE E0443 Contract Period: Option 1 POP Begin: 04-01-2027				

POP End: 03-31-2028 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
10R4	0.00	CY	
M-6 Cylinder Refill. HCPCS CODE E0443 Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2028 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
10R5	168.00	CY	
M-90 Tank Refill. HCPCS CODE E0443 Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2028 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
10R6	30,600.0	LB	
	0		
Liquid Oxygen Refill. HCPCS CODE E0444 Contract Period: Option 1 POP Begin: 04-01-2027 POP End: 03-31-2028 PRINCIPAL NAICS CODE: 532283 - Home Health Equipment Rental PRODUCT/SERVICE CODE: 6515 - Medical and Surgical Instruments, Equipment, and Supplies MANUFACTURER PART NUMBER (MPN): N/A			
GRAND TOTAL			

B.3 PERFORMANCE WORK STATEMENT

PERFORMANCE WORK STATEMENT - HOME OXYGEN SERVICES

SECTION 1 – SCOPE

1. Scope:

This Performance Work Statement (PWS) defines the effort required for the setup, installation, and management of Home Oxygen services and Ventilation, in accordance with The Joint Commission (TJC) or equivalent standards, to Veteran Beneficiaries serviced by VA Sierra Nevada Healthcare System (VASNHCS). This PWS includes the associated program management, human engineering, and logistic support planning requirements. The use of the terms “Beneficiary”, “Veterans”, “Patients”, and “Patient” are used interchangeably and refer to the recipient of required supplies, equipment, and incidental services required under the contract.

1.1 Background:

The acquisition of Home Oxygen services is being initiated to provide Home Oxygen services to Veteran Beneficiaries serviced by VASNHCS. VASNHCS does not have the capacity to provide these services, so a contract has been sought for the provision of home oxygen and all associated products and services.

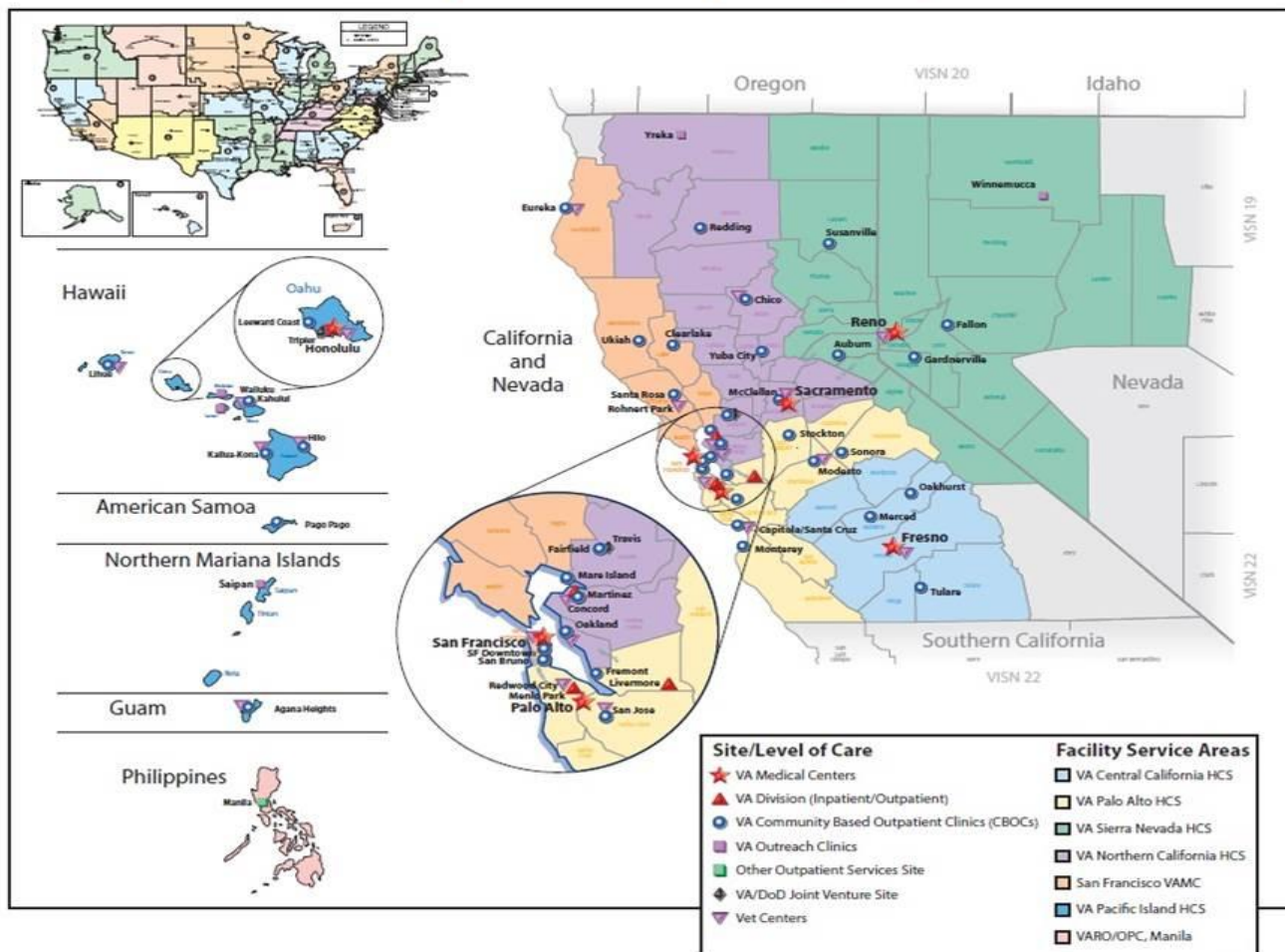
1.2 Locations:

All services shall be performed in the Veteran's place of residence or in a nursing home housing the Veteran. The area of service shall be all Patients serviced by VASNHCS, including catchment areas, regardless of where Patient resides. The equipment needs are subject to change as determined by the prescribing physician. Contractors shall have a facility or resources physically located in the geographic area in which they shall provide service. Non-territory requests shall be required from time to time, and the Contractor shall accept these "non-territory" Veterans at that Contractor's awarded price. VA reserves the right to assign these Patients to any Contractor. The geographical boundaries described herein have been determined as the areas of responsibility/jurisdiction for each local VA Medical Centers (see next page for VISN 21 map).

- VA Sierra Nevada Healthcare System (VASNHCS) serves the counties of: Alpine, Inyo, Lassen, Modoc, Mono, Plumas and Sierra in California. VASNHCS also serves the counties of: Carson City, Churchill, Douglas, Humboldt, Lander, Lyon, Mineral, Pershing, Storey and Washoe in Nevada. The main VA facility is located in Reno Nevada.

VA Sierra Pacific Network (VISN 21)

VA Sites of Care by Health Care System (HCS) Service Areas



1.3 Estimated Dollar Value / Guaranteed Minimum/Maximum

The following table includes the guaranteed minimum amounts per geographical area and the maximum ceiling amounts per geographical area. The minimum guarantee is applicable to the base year only and will be included in the first funded task order awarded against the IDIQ contract for each respective geographical area of the Indefinite Delivery Indefinite Quantity (IDIQ) contract. Also, the maximum ceiling amounts stated below for each geographical area apply to the IDIQ contract in its entirety, not to individual task/delivery orders.

Geographical Area	Guaranteed	Maximum
	Minimum	Ceiling
VA Sierra Nevada Health Care System	\$1,000.00	\$9,000,000.00

1.4 Roles and Responsibilities:

- A. Clinician orders for providing Home Oxygen Healthcare Services, which includes the use of home oxygen, home based life support systems (i.e. ventilators) and related respiratory equipment (C-PAP/Bi- Level nebulizers, compressors, etc.) are processed through the Prosthetic and Sensory Aid Services (P&SAS) at the VA Medical Centers, and VA Healthcare Systems. Initiation of treatment, delivery and pick up of equipment and, resolutions of problems related to equipment or Patients care are under the direction of P&SAS and/or the Contracting Officer's Technical Representative (COR).
- B. VA Clinicians have the exclusive responsibility for determining eligibility and necessity for admission to the Home Oxygen Program and for providing orders for admission. The Contractor shall provide the services, supplies and equipment as ordered, under the timelines specified.
- C. VA Clinicians will complete initial and ongoing Patients assessments.
- D. The Contractor is responsible for coordinating, supervising, monitoring, and evaluating the care and service provided and must assure that the contracted services are performed according to the terms of the contract. The Contractor must also assure that its personnel meet the requirements of the contract and are competent to do the jobs assigned them. The VA may but is not limited to monitoring the Contractor's performance through Contractor site visits, Patient home visits, record checks, and Patient satisfaction/complaints. The VA will conduct monthly review of invoices for accuracy. Monitors will focus on timeliness of equipment delivery; timeliness of maintenance visits; accuracy of required paperwork, and adherence to The Joint Commission (TJC) or equivalent standards.
- E. The VA sets timelines for the provision of services and the Contractor must meet those timelines. It is the Contractors responsibility to schedule the times and dates for the delivery of services within the timelines established. Deliveries shall not be left unattended at the Patient's home, unless prior arrangements are made with the Patient. (See section 5 of the Performance Work Statement (PWS))
- F. VA providers determine the discharge plan from the Home Oxygen Program based on clinical assessment that may also include data submitted by the Contractor.
- G. Contractor shall notify Contracting Officer's Representative (COR) for review and approval of any changes to the treatment plan and/or prescription that is sent to Contractor by VA medical provider. COR shall contact VA medical provider for his or her review and approval or disapproval.
- H. In the event of damage to and/or theft of Contractor's equipment due to Patient negligence, Contractor shall, within 10 calendar days of having knowledge of damage and/or theft of any Contractor issued equipment under this contract, notify the respective facility COR, in writing,

describing the damage and/or theft. Facility COR will notify the Contracting Officer to discuss a resolution to the issue.

1.5 Accreditation:

The Contractor shall meet or exceed all The Joint Commission (TJC) standards (previously known as the Joint Commission on Accreditation of Healthcare Organizations, or JCAHO) or equivalent accrediting standards for all services provided herein. Contractor shall submit proof of meeting or exceeding all TJC standards as part of its technical proposal. The TJC or equivalent standards may be accessed at www.jointcommission.org. Contractor shall be accredited by a nationally recognized organization and shall maintain that accreditation throughout the term of the contract.

1.6 Site Visits:

- A. On-site Contractor and VA Patient visits will be made on a scheduled and unscheduled basis. The Contracting Officer and/or the COR and, other VA employees as necessary, will conduct Contractor site visits. The purpose of these visits is to monitor the Contractor's performance as it relates to the contract and commercial practices. The Contractor agrees to make available all records and documentation necessary during such visits.
- B. In addition, the Contractor agrees to visits by any accrediting body (or other Government representative) accompanied by the Contracting Officer, COR or designee necessary to review the contract services. These visits shall be allowed at no additional cost to the Government.

1.7 Ordering:

- A. Authorized VA representatives of Prosthetics and Sensory Aids Service (P&SAS) or appointed CORs at VASNHCS locations will issue orders for home oxygen services. Such individuals will be identified at time of award. Each order will contain the Veteran's name, last 4 of social security number, and home address, as well as the type of supplies, services or oxygen system prescribed.
- B. Orders may be placed by telephone, fax, Public Key Infrastructure (PKI) secured E-mail, or through a Contractor owned and maintained secure website and as necessary, will be confirmed in writing and accompanied by the Home Oxygen Prescription. If a delivery order is placed verbally, a written copy of the verbal delivery order will be transmitted to the Contractor within 48 hours of placing the order. Confirmations shall be required for any order placed. Contractor shall have a direct local number with an employee on duty for after-hours orders and not be referred to a call center.

1.8 Emergency Service:

- A. The Contractor shall have twenty-four (24) hour, seven (7) day a week, and 365 days per year emergency service capability. At a minimum, the Contractor shall have a company employee on duty or a twenty-four-hour answering service or, an employee within paging range to respond to emergency calls. Contractor shall respond within thirty (30) minutes by telephone upon receipt of an emergency call and advise Patient of the specific emergency procedure to be implemented. Contractor shall have a backup procedure in the event they are unable to reach the Patient by phone.

- B. The back-up procedure stated in 1.7.A. above shall be specific to the geography and conditions of the area being serviced with a copy provided to the appropriate COR at the time of award. If the procedure is updated a copy shall be sent to the COR within three (3) business days.

1.9 Documentation:

The Contractor shall maintain documentation of all orientation programs and background checks for all employees involved in delivery/recovery of home oxygen equipment. As a minimum, topics should include safety and equipment management, such as electrical requirement, back-up systems, equipment safety checks, troubleshooting, equipment set-up, infection control procedures, Patient confidentiality and handling procedures. Annual competencies are required. Documentation shall be made available upon written request of the Contracting Officer or facility COR.

1.10 Solicitation of Patients:

Contractor shall deal directly with the Contracting Officer, the facility COR, or the appropriate facility P&SAS representative relative to any aspect of the contract. Contractor agrees he/she shall not directly or through his/her dealers solicit the Patients of the Department of Veterans Affairs. Contractor is to contact the Patient or Caregiver only to make arrangements for rendering services or supplies authorized by VA.

1.11 Demurrage Charges:

Contractor agrees to provide cylinders without assessing demurrage charges to the Government. The Contractors further agrees that the free loan period of cylinders is indefinite but shall not exceed the term of the contract.

1.12 Product Substitutions:

The Contractor shall not substitute any product without prior approval of the treating facilities COR.

1.13 Definitions / Acronyms:

- Bi-Level: A device used for the treatment of obstructive sleep apnea/hypoventilation syndrome while sleeping that has two pressure settings
- CBOC: VA Community Based Outpatient Clinic
- CPAP: Stands for “Continuous Positive Airway Pressure” and is a device primarily used for the treatment of obstructive sleep apnea; has single pressure setting
- Concentrator: An electrical device used to deliver oxygen therapy in the home.
- Contracting Officer: A warranted VA official with the authority to legally enter into a contract, administer a contract, and/or terminate contracts on behalf of Department of Veteran Affairs
- Contracting Officer's Technical Representative (COR): VA official who is responsible for providing contract oversight and technical guidance to the Contracting Officer. Responsibilities include certification of invoices, placing orders for services, and technical guidance
- FAR: Federal Acquisition Regulations

- HCPCS: Health Care Procedure Coding System
- IPV: Intrapulmonary Percussive Ventilation use for airway clearance therapy
- The Joint Commission (TJC)— A national organization dedicated to improving the care, safety and treatment of patients in a health care facility and environment
- Liquid Stationary System : A device used to store and dispense liquid oxygen
- Liquid Oxygen: Oxygen in a liquefied state
- Nebulizer: A device used to dispense inhaled medication
- Oxygen Tanks : Cylinders made of steel, light steel, and aluminum used to store oxygen in a compressed state
- P&SAS: Prosthetics & Sensory Aids Service
- Suction Machine: A device used to remove secretions from a Patient's mouth or airways
- VA: Department of Veterans Affairs Medical Center, or Healthcare System
- VISN: Veterans Integrated Service Network
- Plan of Care : Medical care plan is a Patient assessment initiated on each Patient by VA clinician
- Plan of Service : Form initiated by Contractor that depicts Patient's home environment, problems/needs, goals, and action
- CRT: Certified Respiratory Therapist
- RRT: Registered Respiratory Therapist
- RN: Registered Nurse

SECTION 2 – GOVERNMENT-FURNISHED PROPERTY

Some VASNHCS locations authorize Contractor to provide government-furnished equipment to patients in the performance of the contract. In such cases, all government-furnished property provided under the contract shall remain the property of the VA:

- All CPAP Devices, which may include masks, non-heated humidifiers and heated humidifiers
- All BiPAP Devices
- Nebulizers (to include battery powered) Suction Pumps
- Air Compressors
- Intrapulmonary Percussive Ventilation System (IPV) Ventilators
- FIRESAFE Cannula from LifeGas (see Paragraph 4.1.viii.)

At other sites where the VA does not authorize Contractor to provide government-furnished equipment to Patients, the Contractor shall be required to provide such equipment and shall submit a price quote for providing any item listed in the schedule, regardless of the above list. Additional equipment or supplies may be added throughout the life of the contract by contract modification executed by the Contracting Officer (CO).

SECTION 3 – CONTRACTOR-FURNISHED PROPERTY

The Contractor shall furnish the following list of equipment:

- Concentrator Systems
- Liquid Oxygen Systems
- Portable Gaseous Systems
- Portable Gaseous Oxygen Systems
- Portable Liquid Oxygen Systems
- Ventilators and all appropriate prescribed equipment
- Air Compressors
- Aluminum Oxygen Tanks
- Steel Oxygen Tanks (Optional)
- Supplies (e.g., tubing, cannulas, masks, etc.)

In addition to the above list, the Contractor shall furnish all equipment necessary to comply with the requirements of the contract. Equipment furnished by the Contractor shall remain property of the Contractor unless purchased by the VA.

3.1. *This paragraph has been removed from PWS.*

3.2 Veterans Served:

VASNHCS currently serves an estimated 397,300 covered Veterans with an average growth rate of 2.7%. The volumes or amounts shown in the Contract Line-Item Numbers (CLINS) are estimates only and impose no obligation on the VA. The contract shall be for the actual requirements of the VA as ordered by the VA during the life of the contract. The Contracting Officer's Representative (COR) or designee shall provide (via encrypted email and fax) the Contractor with notification to initiate individual Patient service requirements, including the Patient's oxygen prescription, equipment, supplies and services to be provided including date and place of delivery. The Contractor shall confirm receipt (via encrypted email and fax) of the request within one (1) working hour of notification. Per Facilities discretion, the COR or designee shall also provide (via encrypted email and fax) notification if VA owned equipment is to be provided. The COR or designee shall also provide notification (via encrypted email and fax) to the Contractor of VA initiated discontinuation of service. The discontinuation notifications shall be made (via encrypted email and fax) within 24 hours. The written documents shall include the authorizing official's signature, electronic or written.

3.3 Initial Set-Ups:

Initial set-ups are considered to be those Beneficiaries who do not have a VA authorized oxygen therapy delivery system or ventilators.

- A. Initial setup(s) for Home Oxygen Patients and Ventilator Patients shall be performed by a contractor trained and qualified technician or registered nurse or certified respiratory therapist (CRT) or registered respiratory therapist (RRT), that is licensed in accordance with the governing standards of where the services are to be provided, whom shall perform the following:
 - i. Home visits shall be performed monthly by the RRT/CRT for all Patients that utilize the ventilator either continuously, for nocturnal concerns, and/or for intermittent ventilation.
 - ii. Home visits shall be performed every ninety (90) days by Certified Technician for all Patients that utilize home oxygen services.
 - iii. Documentation shall be provided (via encrypted email and fax) to the ordering facility's COR documenting a thorough review of the Patient's equipment, to include all equipment records, and any re-education of the Patient and/or Caregiver, if necessary.
 - iv. Documentation shall be provided (via encrypted email and fax) to the ordering facility's COR for all home visits within five (5) business days of the visit.
 - v. Patient or Caregiver education shall be performed on the proper utilization for the issued equipment to include the following:
 - a) Proper equipment usage
 - b) Equipment function and operation system
 - c) Equipment knobs, controls, buttons, outlets, and inlets
 - d) Equipment power source: electric, battery, compressor air, oxygen, and UL approved
 - e) Proper utilization of oxygen with the prescribed ventilator
 - f) Troubleshooting the equipment and system alarms
 - g) Equipment and equipment settings that have been prescribed
 - h) Proper equipment exchange/replacement, for example: ventilator tubing/circuit
 - i) Proper utilization of a Passy Muir Valve (PMV) Speaking Valve while in use with the ventilator
 - j) How to attach the resuscitation bag to the oxygen source
 - k) How to complete the home ventilator monitor record
 - l) Emergency Procedures and how to respond to:
 - 1) Power failure

- 2) Equipment failure
- 3) Ventilator users and their Caregivers must be prepared for equipment failure, disconnects, and power outages, especially if using 24 hour ventilation
- m) Practicing regular safety drills helps prepare for emergencies
- n) Keeping a manual resuscitator, such as a bag valve mask (Ambu bag).
- o) Infection control and Patient supply storage
- p) Cleaning or exchanging the oxygen tubing, ventilator tubing/circuits, and humidifier
 - 1) Cleaning or exchange of the resuscitation bag and supplies
 - 2) Cleaning or exchange of all equipment and accessories
- q) Provide continuing education in use as needed or directed by a licensed and privileged Department of Veteran Affairs Physician.
- r) All education material provided by the Contractor shall be initially reviewed and approved by the Veteran's Affairs Pulmonary or Respiratory Chief/ Director/Supervisor or designee within the Pulmonary/Respiratory Section. Any changes to educational materials shall need to be reapproved prior to providing the aforementioned documentation to patients.
- s) The Contractor shall provide a signed document (via encrypted email and fax) to the ordering facility COR verifying the following:
 - 1) Patient has a safe home environment in accordance with The Joint Commission or equivalent accrediting standards.
 - 2) Patient received proper education and instructions
 - 3) Competency has been accomplished with the Patient and Caregiver on the proper use of the ventilator, oxygen equipment, and other home medical equipment upon initial set up, and re-verified annually.
- B. All equipment shall contain an adhesive type of label containing the vendor's name and emergency 24-hour toll-free phone number. This label shall be placed on the equipment in an area that is viewable to patients and/or Caregivers at all times. Patient shall be given a document listing toll-free phone number for routine resupply of oxygen cylinders and supplies.
- C. The Contractor shall provide and post on all entrances into the residence, a sign stating "Warning Oxygen in Use, No Smoking" or other verbiage that No Smoking is allowed due to oxygen being present and document that the Patient/care giver is instructed in the safe use of oxygen and equipment per OSHA regulations. Specified sign shall be no smaller than 4" X 6".
- D. The Contractor shall provide the initial set-up the same day when the prescription is received by 3:00 PM local time, to include weekends and holidays; this shall also apply to service calls. The VAMC reserves the right to obtain the supplies and service from another source and to charge the

Contractor with any excess cost which shall result there from, if the Contractor is unable to meet required response time.

- E. The Contractor shall be required to provide initial setup within 24 hours when prescription is received after 3:00 PM Central Standard Time to include weekends and holidays. This shall also apply to service calls.
- F. The Contractor shall have a staffed branch office or available resources located within 50 miles of each medical center.
- G. Setup of Home Oxygen includes setting up and ensuring the appropriate oxygen system is operational, instruction and training of patient, and/or Caregiver and home environment safety check. Failure to deliver within the required time shall result in the VA obtaining oxygen from another source. Any costs in excess of contract pricing for services provided shall be billed to Contractor or credited to next invoice at the discretion of the ordering facility (Reference 52.212-4(d) Disputes).
- H. If any modifications or preparations need to be made to equipment, these changes shall be coordinated with Patient's Caregiver and made before the Patient arrives home from the hospital. Other items that shall be prepared ahead of time include:
 - i. Establishing designated Customer Service support phone line for patients to call for in home assistance
 - ii. Posting all emergency numbers by each telephone
 - iii. Marking the circuit breakers and fuses

3.4 Ensure Home Requirements are Present:

- A. Upon initial setup the Contractor is responsible for ensuring the home and electrical system shall support all requirements of the equipment being provided including:
 - i. Proper electrical requirements are present.
 - ii. Appropriate heating and/or air conditioning, if applicable
 - iii. Hot and cold running water
 - iv. Spaces for cleaning and storing equipment
 - v. General conditions and cleanliness
 - vi. Adequate door size
 - vii. Steps, need for ramps, or other access needs
 - viii. Availability of ambulance/paramedics and hospital
 - ix. Availability of a telephone
 - x. Presence of operational smoke detector(s)

xi. Presence of operational fire extinguisher(s)

xii. Presence of fire evacuation plan

- B. The Contractor shall be responsible for notifying the COR or their designee by telephone while in the Patient's home, if any alteration to the Patient's home is necessary to accommodate the oxygen equipment, including electrical work.

If the Patient's home's electrical system is not sufficient, the Contractor shall facilitate alternative oxygen system, if deemed appropriate by the COR or their designee. Any alteration to the Veteran's residence shall be the responsibility of the Veteran.

3.5 Period Equipment Evaluation:

The Contractor shall have a Certified Technician visit the Patient to reassess equipment compliance, educational needs, and other Patient needs: for Home Oxygen Patients, at least once every ninety (90) days; and a CRT/RRT for Patients on ventilators, once every thirty (30) days. Individual 30 and 90 day checks per patient and a worksheet monthly with a list of patients serviced.

- A. A report shall be developed, signed and dated by the Contractor staff and the VA Patient/care giver and a copy shall be left with the Patient. The reports shall be legible and attached to the invoice. All reports shall be submitted to the COR or designee in alphabetical order, within five (5) business days of the service. The written report shall include at a minimum the following data:
- i. Name and Patient ID to be assigned by facility of patient using the equipment.
 - ii. Monitor compliance on prescription (LPM, hours per day)
 - iii. Type of concentrator and hours on concentrator
 - iv. Inspection results of liter flow rate in monitoring Patient compliance (as compared to prescription).
 - v. Inspection compliance of filters (exchange or clean by patient) according to manufacturer's guidelines
 - vi. Follow-up education and/or reinforcement of compliance documented.
 - vii. Revised plan of service as needed.
 - viii. The Contractor shall provide documentation (via encrypted email and fax) of the last visit date, calculated number of expected usage hours and the actual hours of usage based upon the Patient prescription and the Patient last visit to the COR or designee.
- B. If the Patient does not receive a reassessment of equipment every 90 days, documentation shall be provided (via encrypted email and fax) to the COR or designee identifying the reason a home visit was not made (Example: Initial set up completed March 1st, Patient shall have a follow-up home visit no later than June 1st).

If, in the Government's discretion, the Contractor has not made valid and documented attempts to contact the Patient for set up and/or deliveries, the Government reserves the right to call in third party to provide said setups and/or deliveries in the Contractor's place, and shall bill the

Contractor all excess costs for covering the missed requirement, if the Contractor fails to perform for any due month (reference FAR 52.212-4(d) Disputes).

- C. Serial Numbers for the rented equipment shall be the vendor's responsibility and kept on file in Contractor's main office.

3.6 Emergency Services:

- A. Emergency services are for medical equipment provided to patients when an equipment malfunction or natural disaster may threaten a Patient's health. The Contractor shall provide to the Contracting Officer a written emergency management plan, in compliance with The Joint Commission or equivalent standards. This emergency action plan shall address continuity of services for all Patients in the affected region.
- B. The Contractor shall provide emergency maintenance 24 hours/7 days a week, including weekends and holidays. A document listing the emergency telephone number shall be provided to the Patient at the time of set up.
- C. The Patient shall first call the Contractor in an emergency equipment situation as described in the previous sentence. The Contractor shall have a well-established communication system, providing 24-hour emergency services and the ability to provide services at the Patient's home within two (2) hours of a call, but in no case to exceed six (6) hours of a call.
- D. The Contractor shall ensure all Patients have at minimum a non-electrical oxygen supply to last eighteen (18) hours. The minimum supply shall take into account each Patient's prescription flowrate and distance from the Contractor's location, and so actual supply levels may differ from Patient to Patient, as long as each Patient has oxygen supply to last a minimum of eighteen (18) hours.
 - i. If the Contractor is unable to respond to an emergency service call within six (6) hours, the Contractor shall be responsible for making arrangements with another supplier, who meets all Joint Commission or equivalent standards, to provide oxygen at the Contractor's expense.
 - ii. A written explanation (via encrypted email and fax) of why the Contractor was unable to respond to the emergency shall be provided to the COR or designee within two (2) business days. The cost of backup systems, backup oxygen, and backup equipment shall be borne by the Contractor. If H or M size oxygen cylinder is used for backup, the Contractor shall furnish an H or M size oxygen cylinder stand for each H or M size oxygen cylinder. Liquid oxygen supply shall be considered backup oxygen; however, the oxygen supply shall be maintained at the minimum of eighteen (18) hours.
- E. In the event of disaster, natural or otherwise, the Contractor shall notify the COR or their designee within 24 hours if services covered under this contract may be affected.

3.7 Preventive Maintenance:

Contractor shall provide service and preventive maintenance on all equipment as recommended by the manufacturer. Preventive maintenance shall only be performed by a certified service technician that has received the approved training. Contractor shall provide all documentation to the COR with signatures

and dates on the contract inception date and upon the COR's request and during quarterly site inspections.

3.8 Manuals:

The Contractor shall provide the Operation and Service manual to the Patient and/or Caregiver upon delivering any equipment. The manual shall contain information on operation, maintenance, and troubleshooting for clinicians, users, Caregivers and service technicians. Contractor shall provide to the Government, one (1) copy of the Operation and Service manual for each type of equipment with any proposals regarding this contract.

3.9 Storage Charges:

The Contractor shall provide cylinders to store at each facility without charging the Government. These cylinders shall be used for special circumstances (i.e. emergency services or short notice discharges). The Contractor's free loan period of cylinders shall not exceed the term of the contract.

3.10 High Risk Smokers:

The facility shall notify the Contractor of all identified High Risk Smokers. The Contractor shall notify the COR or designee of High-Risk Smokers that they identify in the home via encrypted email and fax within one (1) day of the home visit. Contractor notification to each COR or designee shall consist of Contractor's written report/form and shall contain at a minimum Veteran's name and last four (4) numbers of their social security number shall be clearly documented, and what precautions were provided to the Patient. High-risk Patients are Patients who exhibit unsafe clinical or behavioral traits involving oxygen and smoking, such as attempting to hide their smoking materials or activities from staff, having a history of non-compliance with smoking rules; or smoking in a Patient sleeping room or other areas designated as non-smoking areas.

3.11 Patient Travel:

- A. The Contractor shall be responsible for coordinating all services for Veterans who travel within the geographical area covered by this contract. Travel is defined as those occurrences in which the Beneficiary stays away from their domicile overnight. Patients shall be instructed by the Contractor and VA staff to notify the Contractor and the VA resident facility at least two (2) weeks before intent to travel and four (4) weeks if they are permanently relocating. Patient shall be responsible for coordinating transportation of oxygen/equipment with their respective airlines.
- B. Veterans covered within the purview of this contract shall be authorized, excluding medically related travel, a maximum of 30 days travel, with a maximum of two (2) set-up charges within one calendar year from the latest prescription date. Subsequent to this, any other costs shall be the Patient's responsibility.
- C. The Contractor shall provide Veterans traveling within the geographical area covered by the contract all oxygen services hereunder at the contract rate utilizing Contractor furnished equipment only. The Contractor shall provide equipment setup by licensed CRT/RRT at designated travel destinations for Veterans receiving care at a covered geographic area within VASNHCS. The Contractor shall invoice the resident Facility on a monthly basis for the services rendered under this contract.

- D. When the Veteran is temporarily traveling / relocating, outside of the contracted area, the Contractor shall coordinate oxygen requirements if that Contractor has a subsidiary office located at the temporary destination. If not, the resident VA facility shall coordinate with the VAMC nearest the Veteran's destination to make these arrangements.
- E. When the Veteran is permanently relocating to any area not covered under this contract, the Contractor shall:
 - i. Instruct the Patient that they are responsible for notifying the current resident facility 30 days prior the permanent relocation
 - ii. Provide the Veteran with up to a ninety-(90) day supply of Oxygen/Ventilator Supplies or until the Veteran has setup service in the new location
 - iii. The Contractor is responsible for providing oxygen equipment and supplies until such time as the destination VAMC enrolls the Patient into the Pulmonary/Home Oxygen Clinic and the destination facility (or contracted vendor) provides their equipment, unless other arrangements or agreements have been made between the two VAMCs. The destination VAMC must enroll the Veteran as soon as reasonably possible (e.g. < 30 days in accordance with VA Clinics "Waits and Delays" measure).
 - iv. Upon arrival at the destination VAMC, any equipment that came with the Patient and that is owned by the resident facility or Contractor shall be returned. Any cost incurred in the shipping/handling is the responsibility of the resident VAMC.
- F. Travel outside the continental United States is not covered under this contract. Veteran shall be responsible for all travel arrangements and for obtaining oxygen services when traveling outside the United States.

3.12 Plan Of Service:

The Plan of Service shall be developed by appropriate VA clinical staff at each facility and the Contractor's Respiratory Care Practitioner (RCP), in accordance with the Plan of Care and the prescription provided by the VA. Prescription changes must be authorized by a VA Provider.

3.13 Community Numbers:

The Contractor shall provide the local power company, telephone company, and fire department a letter for special consideration within 24 hours of the initial setup and delivery of Home Oxygen Services. This letter shall request that this Patient be placed on the priority list to restore or respond in the event of an emergency or failure of any source. The Contractor shall provide this letter to the COR or designee for approval within 30 days of this contract award date. The Contractor shall also provide a magnet no smaller than 3 ½"X 4" with emergency numbers which include police department, fire department, ambulance, doctor, and VAMC number to all Patients.

3.14 Delivery and Discontinuation of Equipment and Suppliers:

- A. The Contractor shall be responsible for scheduling appointments with patients within the time requirements listed in section 2.1 to initiate set ups and deliveries. Deliveries shall not be left

unattended at the Patient's home. Physical acceptance of deliveries must take place between the Contractor and either the Patient or Caregiver.

- B. If the Patient fails to meet two (2) consecutive appointments, the Contractor shall notify (via encrypted email and fax) the COR or their designee within 24 hours of the second missed appointment. The COR or their designee shall contact the patient and a corrective action plan shall be implemented. COR shall notify (via encrypted email and fax) the Contractor of any changes.
- C. If the Contractor has not documented valid attempts to contact the Patient for set ups and or deliveries, the Government reserves the right to call in a third party and bill the Contractor. The Contractor shall not be paid for those services during the billing period if services are not rendered.

3.15 Delivery Schedule:

Contractor shall develop a delivery schedule for service, equipment, and supplies with each Patient following receipt of the facility order.

3.16 Service of Equipment:

- A. The Contractor shall furnish, install and service all equipment and supplies ordered under this contract. All disposable supplies shall be new and unused. A label with the Contractor's name and emergency telephone number, where they can be reached 24 hours/day, shall be affixed to all equipment. The repair/maintenance of all equipment by the Contractor shall be performed by a competent professional familiar with nature of the equipment involved and fully qualified under the laws of the State in which the services are being rendered.
 - i. Provision of all equipment shall be consistent with local Fire and Safety Codes in the respective area of the state,
 - ii. The Contractor shall provide a safety/emergency checklist to be completed, then signed by the Veteran or his/her Caregiver and retained in the Patient account folder. The Contractor shall service all equipment at the manufacturer recommended intervals. The Contractor shall conduct a check of the concentrator using a certified oxygen analyzer that is calibrated according to the manufacturer standards.
 - iii. The Contractor shall perform maintenance on all equipment according to the equipment manufacturer's guidelines. The Contractor shall change compressor inlet pre-filters and compressor inlet bacteria filters according to the manufacturer recommendations.
 - a. The Contractor shall test the alarm battery at each maintenance check, changed as indicated but at least annually.
 - b. The Contractor shall track and document maintenance of equipment in accordance with manufacturer specifications and provide these records for review upon request. Contractor shall furnish parts and labor for routine maintenance. The Contractor shall have recall procedures for equipment and supplies.

- B. The Contractor shall not change or alter a Patient's oxygen prescription or equipment requirements without a new prescription from the Patient's VA physician.

3.17 Contractor Visits:

- A. The Contractor shall visit Beneficiaries' residences in performance of this contract by appointment only between the hours of 8:00 AM and 8:00 PM, seven days per week, exceptions shall be made in the cases of emergencies.
- B. The Contractor shall be responsible for scheduling the appointments to the Patient's home at least 48 hours prior to the appointment. On each scheduled setup/delivery the Contractor shall retrain the Patient on the use and care of the equipment and supplies. When conducting home visits the Contractor's representatives shall present a professional appearance and adhere to the following as a minimum:
 - i. An ID badge shall be affixed to clothing above the waist with the Company name, employee name, and photograph to the front and clearly visible.
 - ii. Shoes shall be clean and in good condition (open toe shoes are not acceptable).
 - iii. Shirts and/or blouses shall be uniform and contain the company's name and/or logo.
 - iv. Slacks or khakis shall be worn. Blue jeans are not allowed.
 - v. Mid-calf dress slacks or trousers shall not be denim, revealing, provocative, spandex or similar tight-fitting fabrics
 - vi. Socks, stockings, or hosiery shall be worn at all times.
 - vii. Skirts shall be at or below knee length.

3.18 Excess Delivery:

The VA shall not authorize payment on the delivery of excess supplies or equipment. Excess deliveries are those provided without prior authorization by the VA.

3.19 Assessment Requirements:

- A. The Contractor shall perform an assessment of the Patient's home and environment, at least every 90 days (or if required due to Plan of Service changes) in accordance with The Joint Commission or equivalent accrediting standards, and maintain documentation of assessments in the individual Patient file or folder.
- B. The Contractor shall notify the COR or their designee during the home visit if the Contractor's staff determines that the presence of oxygen in the home presents such a danger that the oxygen shall be removed, or in the case of an initial set-up, not placed in the home. Unsafe conditions may include, but are not limited to, fire safety hazards, oxygen safety hazards, Patient abuse, or any instance that places the Patient or Contractor's staff in immediate danger. The Contractor shall contact the COR or designee by phone during the home visit and furnish (via encrypted email and fax) written documentation of the safety hazard to the COR or their designee within five (5) business days of the incident.

- C. The Contractor shall document and report (via encrypted email and fax) to the COR or their designee, within five (5) business days of the service, any Patient who is non-compliant with safety guidelines set forth in the education and orientation material and or whose behavior poses a risk of self-harm or harm to others (i.e. smoking while on oxygen) despite warnings and ongoing educational interventions.
- D. The Contractor shall check the adequacy of the electrical outlets in the Patient's home and report unsafe conditions to the COR or their designee via phone call during the home visit. VA is not responsible or liable for any unsafe electrical conditions caused by the Contractor. Any alterations to the Veteran's residence shall be the responsibility of the Veteran. If the COR or their designee decide that the ordered equipment cannot be safely installed, an alternative oxygen delivery system shall be provided after approval until new prescription can be obtained.
- E. The Contractor shall verify the presence of working smoke alarms and instruct the Patient to test all smoke alarms on a monthly basis and include this verification in the documentation of assessment. The Contractor shall document (via encrypted email and fax) any home where smoke alarms are not present and fully functional, the Contractor shall provide this notification to the COR or designee within five (5) business days of the service.

3.20 Discontinuation of Service:

- A. The Government shall notify (via encrypted email and fax) the Contractor in the event of an order to discontinue oxygen service to any Patient covered under this contract. Payment shall be prorated based upon the notification date of discontinuance of service. The Contractor shall notify the COR or designee within next business day upon discovering a Patient is no longer available for services (i.e. deceased, moved out of the service or contract coverage area, and any other situation that the Patient would no longer be available for services). Payments shall be prorated based on dates of service provided.
- B. The Contractor shall remove equipment from the Patient's residence at the earliest possible time but no later than five (5) business days unless approved by COR or designee. The date and time of equipment pickup shall be coordinated with the Patient (if relocated) and/or next of kin and/or significant other. The Contractor shall honor Patient's or family's requests to pick-up equipment before or after funerals or family gatherings relative to patient funerals.

3.21 Patient Education Requirements:

The Contractor shall provide education to each Veteran at the time of set-up and assess the need for reinforcement during visits. This information is to be presented verbally in demonstration and material covered shall be in written form to be left with the Patient/care giver. The written material shall be in English as well as the foreign language of the Patient, in the event the Patient does not speak English. All Patient education material shall be presented in written form to the COR within thirty (30) days of contract award. The Contractor, as directed by COR or designee shall implement any new or revised education material. The VA shall determine whether the Contractor shall use their forms or forms supplied by the VA for documentation of education services provided to patients.

3.22 Warnings - Fire Safety

The Contractor shall provide educational and/or warning information for patients, their families, or Caregivers on the hazards of smoking while oxygen is in use. The warning materials shall be provided upon initial delivery and every 90 days thereafter. The checklist used by vendors for medical gas follow-up services shall, at minimum include:

- A. No Smoking signs provided and posted
- B. Smoke alarm present, Veteran instructed to test all smoke alarms monthly, and smoke alarm sounds when tested and provide how to obtain one. if smoke alarms are not present, Veteran has been instructed to remove the cannula, shut off the oxygen supply, and wait for the oxygen to dissipate prior to smoking
- C. Veteran, family or cohabitants given educational material regarding the hazards of smoking and using an open flame near oxygen.
- D. Contractor shall check for fire extinguishers and/or provide guidance on how to obtain one.

3.23 Patient Rights and Responsibilities:

Veterans shall be provided a copy of VA Patient Rights & Responsibilities and any applicable information concerning advance directives during initial setup. The Contractor shall provide documentation (via encrypted email and fax) that the Patient/care giver is instructed in accordance with The Joint Commission or equivalent standards, to include how to contact The Joint Commission or equivalent accrediting organization.

3.24 Fall Prevention:

The Contractor shall provide Patient education or re-education on how to prevent falls in the home related to oxygen equipment and supplies (i.e. oxygen tubing is a fall hazard) on initial set up and every 90 days thereafter. The Contractor shall provide documentation (via encrypted email and fax) if it becomes known to the Contractor that the Patient has recently fallen.

3.25 Periodic Performance Review Report:

- A. The Contractor shall provide a written, quarterly report addressing all Joint Commission Standards (or equivalent accrediting body) for improving organizational performance (The Joint Commission standards may be accessed at www.JointCommission.org).
- B. The Contractor shall submit their Periodic Performance Review for contracted services to the COR or designee via encrypted email or fax within 90 days of the end of base or option year annually. The Contractor shall assess and score each Joint Commission or equivalent standard and element of performance that is applicable to the contracted services by entering a self-assessed score.
- C. Any noncompliant findings or gaps in service identified on the self-assessment shall require a plan of action to correct as part of the Periodic Performance Review submitted to the COR or designee.

3.26 Incident Report:

The Contractor shall report special incidents found or occurring during a home visit; to include finding Patients in need of emergency medical assistance, safety hazards that do not fall into the category of

presenting immediate life-threatening danger to the Patient or Contractors staff, inability to contact a Patient within a reasonable period of time, and any other incident meeting the Contractors written policy for incident reporting according to The Joint Commission or equivalent accreditation standards. All reports, containing confidential Patient information, shall be provided to the COR via encrypted email using a standard encryption scheme, such as PKI and fax within 24 hours. Life-threatening situations (i.e. 911, police, and any other emergency) shall be reported to the proper authorities immediately. The Contractor shall maintain a file containing all incident reports at its place of business.

3.27 Customer Satisfaction Report:

The Contractor shall collect satisfaction data from contracted Patients and their families on a quarterly basis in accordance with The Joint Commission or equivalent standards. A copy of survey results shall be submitted to COR or designee in Quarterly reports via encrypted email and fax. The quarterly report is due to the COR by the 5th working day at the conclusion of the quarter. The reporting quarters are as follows: October 1st through December 31st, January 1st through March 31st, April 1st through June 30th and July 1st through September 30th. This report will encompass areas of Communication, Customer Effort, Meeting Expectations, Financial Responsibility, Staff Knowledge, Quality of Equipment, Ease of Delivery, and Ease of Equipment Recovery.

3.28 Infection Control Report:

The Contractor shall collect, trend, and report on data related to the Contractor's Infection Control Program to the COR or designee on a quarterly basis for each contract performance period via encrypted email and fax. The quarterly report is due to the COR within the 5th working day at the conclusion of the quarter. This report will include documentation of TJC accreditation and infection control standards. Upon receipt, COR will forward Infection Control Report to VA Infection Control.

3.29 Performance Improvement Report:

The Contractor shall collect, trend, and report on important processes and outcomes data related to patient care and organizational functions to the COR or designee on a quarterly basis for each contract performance period via encrypted email and fax. The quarterly report is due to the COR within the 5th working day at the conclusion of the quarter.

3.30 Contract Usage Report:

Contractor shall provide a monthly electronic report detailing contract usage by each VASNHCS Facility. Contractor shall provide to each VASNHCS Facility's COR or designee their respective facility's electronic report NLT the 15th of each month. The electronic report shall include the total units per CLIN, and total dollars invoiced by CLIN. Contractor additionally shall submit a composite report of each facility's usage, by facility, to include the total number of unique Patients, the total number of units used by contract CLIN, and the total dollars invoiced by CLIN number to the VISN COR monthly, NLT the 15th of each month.

3.31 Fall Prevention Report:

The Contractor shall collect data on falls and outcomes through conversations with the Patient and Caregivers on a quarterly basis for each contract performance period. The report shall indicate when the incident occurred, were injuries involved, possible causes of fall (i.e. medication, tripping hazard, and/or other situations), as well as corrective action plans, and Patient education conducted. This report should

be provided to the COR or designee via encrypted email and fax. The quarterly report is due to the COR within the 5th working day at the conclusion of the quarter. Education will be provided for equipment placement and management and will include documentation of fall that occur during home visits or verbalized to the vendor. Vendor will alert COR by telephone during a home visit of falls, potential hazards, and necessary home modifications or safety measures necessary to prevent falls. A follow up report will be written to the COR within 2 business days.

3.32 Home Visit Report:

- A. Contractor shall provide a report on compliance with the 90-day home visit requirement for Home Oxygen Patients and 30-day home visit requirement for patients using Ventilators. Report shall be inclusive to all Veterans serviced under the contract.
- B. Data shall include date of last home visit, due date of next home visit, incomplete home visits including documentation and action plan. Report shall be compiled on a monthly basis and be provided NLT the 15th of each month to the COR or designee of each facility via encrypted email and fax.
- C. Patient Plan of Care will be completed, signed, and dated by the Veteran. Any safety hazards (smoking material, open flames, tripping hazards, falls) will be documented.
- D. Patient education will be completed and documented.
- E. Individual Home Visit Reports will be sent to COR within 5 business days.

3.33 Emergency Patient Safety Reports:

- A. The Contractor shall provide the following emergent Patient safety reports throughout the contract period (initial notification shall be within one business day of when the Contractor is aware of the event or issues) with a follow-up official report within 5 business days unless specified below.
- B. The Contractor shall inform the COR or their designee of a sentinel event (as defined by The Joint Commission or equivalent accrediting agency) via encrypted email and fax that occurs during the performance of this contract that involves the Patients serviced under this contract.
- C. All Beneficiaries shall have the right of refusal of service. In the event a Patient refuses service or orders the equipment to be removed from the home, the Contractor shall notify the COR or designee for authorization. The Contractor shall also report the specifics of the refusal to the COR or designee by telephone while in Patient's home. Formal written documentation of this refusal shall be provided to the COR within 5 business days. If the refusal occurs during a home visit, the Contractor's staff shall notify the COR or their designee of the refusal during the home visit.
- D. The Contractor shall report suspected incidents of patient abuse or neglect. Suspected incidents shall be reported to the COR or their designee, as well as to the adult protective agency. The Contractor shall follow all state and local laws in reporting suspected incidents of abuse or neglect.
- E. The Contractor shall report non-compliant behavior with fire safety guidelines set forth in the Patient education and re-assessment material and/or behaviors which pose a risk of self-harm or

harm to others. Such behavior shall be reported to the COR or their designee during the home visit if the Contractor's staff determines the Patient's non-compliant behavior, within the home environment, is not improving after education on the fire hazard of smoking when on oxygen treatment is provided. Noncompliant behavior and any follow-up actions (i.e. educations) shall be documented.

SECTION 4 - EQUIPMENT REQUIREMENTS

4.1 Supplies:

The Contractor shall be staffed and have sufficient supplies to render satisfactory and courteous service at all times to the Patient as listed below. The Contractor shall be responsible for the acts and omissions of his/her employees, his/her Sub-Contractors or satellite offices and their employees. Sub-Contractors shall be required to adhere to the requirements of this contract. In accordance with the prescription received from the VAMC, the Contractor shall provide the Patient with the following disposable supplies:

- i. Oxygen cannula (including green colored cannula/tubing) which is indicated for change at a minimum of every two (2) weeks with a supply in reserve at all times until the Contractor's next scheduled visit.
- ii. Connectors, swivel connectors, washers, wrenches, oxygen nipple adaptors (Christmas trees) provided as needed.
- iii. All masks types (when prescribed) for change every two (2) weeks with a thirty-(30) day supply in reserve at all times until the Contractor's next scheduled visit.
- iv. 25-50 ft. of oxygen connecting tubing shall be replaced on a 90-day supply with an equivalent section of tubing in reserve at all times until Contractor next scheduled visit.
- v. Trachea collar and accessories (i.e. tubing, large volume nebulizer, and any other supplies/equipment that is needed to carry out physician orders) allowing for change every three (3) days with a supply in reserve at all times until Contractors next scheduled visit.
- vi. Humidifiers (both disposable and reusable) and water traps when deemed necessary. The number of humidifiers shall be sufficient to ensure that they are not depleted between re-supply visits. The number of traps shall be based on the Patient's flow rate.
- vii. Safety holder(s), storage rack(s), and/or an e-cylinder cart shall be provided for all Veterans with a prescription for tanks (cylinders) and for use with the back-up system.
- viii. FIRESAFE Cannula from LifeGas (this item may be provided to the Contractor by the VAMC):
 - a. The Contractor shall install the FIRESAFE Cannula devices during contract start-up and during any initial equipment set-ups.
 - b. The Contractor shall replace the FIRESAFE Cannula devices annually with prescription renewal (e.g. renew order for home oxygen therapy).

- c. The Contractor shall provide documentation that the Veteran has received and educated on the appropriate use of these devices via encrypted email and fax.
- d. Contractor shall provide documentation that the devices are being used properly and that the Veteran understands their intended use via encrypted email and fax.
- e. Contractor shall provide documentation concerning the annual exchanges of these devices as well as any unscheduled exchanges when the device is found missing via encrypted email / fax.
- f. Contractor shall provide two FIRESAFE Cannula devices per Veteran only for use on their stationary oxygen system; one at the supply and one at the cannula/mask. No devices are to be used on portable oxygen systems for Veterans using oxygen for migraine headaches only.

4.2 Oxygen Concentrators::

The oxygen concentrators shall be Underwriter Laboratory (UL) approved and shall at a minimum meet the following specifications:

- i. The oxygen concentrator shall be electrically powered (120 volts)
- ii. The oxygen concentrator shall contain a battery-operated audible alarm to indicate a power failure
- iii. The oxygen concentrator shall not perform below the manufacturer's specification
- iv. The oxygen concentrator shall contain an hour meter and oxygen concentration indicator (OCI)
- v. The oxygen concentrator shall be grounded internally or plug into a three-prong wall outlet appropriate for the Patient's home (outlet adaptors are not acceptable)
- vi. Portable oxygen concentrators shall be Federal Aviation Administration (FAA) approved

4.3 Five (5) LPM (Liters Per Minute) Concentrator:

Concentrators shall meet the manufacturer's specifications based on patient needs:

- i. Operate on 120 Volts Alternating Current (VAC), 60 hertz (Hz)
- ii. Have thermal protector for compressor
- iii. Be double insulated and have a three-prong plug
- iv. Have pressure compensated flow meter
- v. Alarms for the following failures required: Power Failure, O₂ Concentration, and Irregular Pressure
- vi. Have power failure alarm.
- vii. Be mounted on wheels for easy movement by Patient/Caregiver

viii. Shall meet Food and Drug Administration (FDA) Quality Systems Regulations (QSR) standards

ix. Sound level of 60 decibel (db) or less

x. Note: Concentrators shall have oxygen sensing devices.

4.4 Ten (10) LPM Concentrator:

Concentrators shall meet the manufacturer's specifications based on patient needs.

i. Alarms for the following failures are required: Power Failure, O₂ Concentration (Optional), and Irregular Pressure

ii. Size: shall vary

iii. Weight: shall vary (light as possible/easily maneuverable)

iv. Be double insulated and have a three-prong plug

v. Be mounted on wheels for easy movement by Patient/Caregiver

vi. Shall meet Food and Drug Administration (FDA) Quality Systems Regulations (QSR) standards

vii. Sound level of 60 decibel (db) or less.

viii. Note: Concentrators shall have oxygen sensing devices

4.5 Pneumatic Powered Oxygen Conserving Devices:

The Oxygen Conserving Device shall be battery-powered or pneumatic powered device that limits oxygen flow to inspiration only and thereby increase the duration of the supply (latest technology that meets the prescription requirements). Pneumatic units shall appropriately meet the following specifications based on patient needs:

i. Pulse dose from .25 to 6 or higher

ii. Have easy to read content gauge

iii. Conservation ratio of 3:1 or higher

iv. Have continuous flow setting

v. Notes: Conserving ratios are based on a breathe rate of 20 breaths per minute (BPM)

4.6 Battery-Powered Oxygen Conserving Devices:

The Oxygen Conserving Device shall be battery-powered or pneumatic powered device that limits oxygen flow to inspiration only and thereby increase the duration of the supply (latest technology that meets the prescription requirements). Battery units shall approximately meet the following specifications based on patient needs:

i. Pulse dose from .5 to 6 or higher

- ii. Have easy to read content gauge
- iii. Conservation ratio of 5:1 or higher
- iv. Bolus delivered per breath of at least 10cc per setting
- v. Have continuous flow setting

4.7 Liquid Oxygen System:

The Liquid oxygen system consists of large reservoir and portable unit that is filled from the reservoir. Standard reservoir holds 110 pounds of liquid oxygen and portable unit holds 3-5 pounds of liquid oxygen. The standard reservoir weighs 65 pounds full and the portable unit weighs 6-8 pounds full (to include high flow systems).

- a. Reservoir shall have condensation collection tray.
- b. Shall have quick release valve for easy refilling.
- c. Flow meter range of 0 to 6 LPM.
- d. Portable must come with shoulder strap.
- e. Shall have electrical or mechanical content indicators.

4.8 Liquid System with Conserving Device:

Liquid system with conserving device consists of large reservoir and portable unit that is filled from the reservoir. Standard reservoir holds 110 pounds of liquid oxygen and portable unit holds 1.9 pounds of liquid oxygen. The standard reservoir weighs 165 pounds full and the portable unit weighs 4 pounds full.

- i. Reservoir shall have condensation collection tray.
- ii. Shall have quick release valve for easy refilling.
- iii. Shall have flow settings of 1-10 or as clinically indicated
- iv. Portable shall come with shoulder strap and belt loop holder.
- v. Shall have electrical or mechanical content indicators.

4.9 Oxygen Cylinder Refill Stations:

1. Oxygen Cylinder Refill Stations shall be a minimum of 5 LPM, fill any size cylinders with capability for continuous or pulse dose.
2. Oxygen provided shall be United States Pharmacopoeia (U.S.P.) oxygen

4.10 Portable Concentrator:

Portable Concentrator (FAA Approved) shall be a minimum of 5 LPM, weight 20 pounds or less, AC/DC capability, 12 hours battery life, continuous and pulse doses (40 ml or greater) flow option. Available for travel purposes only.

4.11 Backup System:

- A. Veterans with a prescription for an oxygen concentrator shall be provided with a backup system consisting of a compressed gas source and regulator with stand, humidifiers, and cannulas/masks for use during the event of a power failure or mechanical problem with electrical home oxygen equipment. The cost of replacement for the above-mentioned backup system shall be borne by the Contractor. The cost of replacement of equipment damaged, lost or misplaced not through Patient's negligence shall be borne by the Contractor.
- B. The Contractor shall provide documentation (via encrypted email and fax) if the Patient declines the oxygen back-up system, to include the reason for declining backup system and the Veteran's signature. Notification (via encrypted email and fax) shall be provided to COR or designee within five (5) business days of the Veteran declining any prescribed equipment or Contractor's inability to deliver the prescribed equipment.

4.12 Underwriters Laboratories (UL) Approved Equipment:

All electrically powered equipment used in performance of this contract shall be UL approved and in compliance American National Standards Institute (ANSI) Standards to include the following list below. Please be advised that the standards shown below may not be inclusive of all the required standards as set-forth by The Joint Commission (TJC) or equivalent.

Document #	Title	Developer	Ordering Information
<u>ISO 80601-2-61:2011</u>	Medical electrical equipment - Part 2-61: Particular requirements for basic safety and essential performance of pulse oximeter equipment	ISO	<u>ANSI ESS</u>
BS EN ISO 80601-2-61:2011	Medical electrical equipment. Particular requirements for basic safety and essential performance of pulse oximeter equipment	BSI	ANSI ESS
<u>BS EN ISO 80601-2-61:2011</u>	Medical electrical equipment. Particular requirements for basic safety and essential performance of pulse oximeter equipment	BSI	<u>ANSI ESS</u>
BS EN ISO 9919:2009	Medical electrical equipment. Particular requirements for the basic safety and essential performance of pulse oximeter equipment for medical use	BSI	ANSI ESS
<u>BS EN ISO 9919:2009</u>	Medical electrical equipment. Particular requirements for the basic safety and essential performance of pulse oximeter equipment for medical use	BSI	<u>ANSI ESS</u>

OVE/ONORM EN ISO 80601-2- 61:2012	Medical electrical equipment - Part 2-61: Particular requirements for basic safety and essential performance of pulse oximeter equipment (ISO 80601- 2-61:2011) (English version)	ON	ANSI ESS
<u>UL 416 (Ed. 4)</u>	Standard for Refrigerated Medical Equipment	UL	<u>UL</u>
UL 544 (Ed. 4)	Standard for Medical and Dental Equipment	UL	UL
<u>UL 962 (Ed. 2)</u>	Standard for Household and Commercial Furnishings	UL	UL

4.13 Contractor-Furnished Equipment:

- A. Contractor-furnished equipment shall be maintained per manufacturer's specifications. Contractor-owned equipment shall be repaired or replaced at no cost to the Government.
- B. The VAMC shall not pay for the Contractor's lost or damaged equipment provided under this contract unless circumstances as reviewed by the Contracting Officer are concluded to be the results of willful negligence on behalf of Patients or VAMC employees. The VAMC shall not be held liable for normal wear and tear of equipment. The VA shall not pay for rental on equipment used by an unauthorized individual during the performance of this contract or for equipment that is lost. Accordingly, this is considered to be the cost of doing business and is the requirement of the Contractor to pay for this type of equipment. See Contract Disputes Act 41 USC 602 et al.

4.14 Government-Owned Equipment:

Government-owned equipment shall be returned to the VA in terminally cleaned condition for repairs, replacement, or disposal as appropriate. Government furnished equipment shall be handled in accordance with FAR 52.245-1 Government Property.

4.15 Cylinders:

The Contractor shall furnish aluminum cylinders that are in accordance with the Interstate Commerce Commission Regulations, and transport cylinders in accordance with Code of Federal Regulations (CFR) Part 49, U.S. Department of Transportation. Any H or M size oxygen cylinder furnished by the Contractor shall have H or M size oxygen cylinder safety stand at no additional charge to the Government. This stand shall remain Contractor-owned.

4.16 Ventilators:

- A. The Contractor shall furnish ventilators as prescribed by a licensed and privileged VA physician/provider. Before a final decision shall be made regarding the installation of a ventilator system in a Patient's home, the Contractor's CRT/RRT shall make a visit to assess equipment functionality and the feasibility of supporting mechanical ventilation in the home. The home assessment includes inspection of the following:
 - i. Ventilator settings/mode

- ii. Ventilator alarms
 - iii. Actual high and low alarm parameters
 - iv. Actual tidal volume and rate
 - v. Compliance
 - vi. Patient pressure
 - vii. Breath rate – ventilator
 - viii. Breath rate – Patient
 - ix. Tidal volume
 - x. Breathing effort
 - xi. Inspiratory time
 - xii. Oxygen concentration (fractional inspired oxygen (FiO₂) or LPM), if necessary
 - xiii. Positive End Expiratory Pressure (PEEP), if applicable
 - xiv. Pressure Support, if applicable
- B. The Contractor shall provide documentation (via encrypted email and fax) to the ordering facility's COR showing that they trained the Patient or Caregiver on how to check the battery.
- C. The Contractor shall provide the Patient and/or Caregiver with enough supplies to ensure that the ventilator tubing/circuits are changed every seventh (7th) day or as per manufacturer's guidelines with six (6) in reserves at all times.
- D. The Contractor shall provide the Patient and family/care giver with training at the Medical Center prior to discharge or at their residence as prescribed upon the COR or designee's request.

4.17 Oxygen Conserving Device:

The Oxygen Conserving Device shall be battery-powered or pneumatic powered device that limits oxygen flow to inspiration only and thereby increase the duration of the supply (latest technology that meets the prescription requirements).

4.18 Humidification and Moisture Exchange Device:

The Contractor shall provide the Patient or Caregiver with enough supplies to change the humidification and moisture exchange device every 24 hours or as needed with two (2) in reserve at all times – 30 day supply and closed system suction catheter to be changed every 24 hours with one (1) in reserve at all times – 30 day supply. The Humidification and Moisture Exchange Device (MDI) shall include the following:

- i. Suction system shall include swivel adapter with Medium Dependent Interface (MDI) port
- ii. Twelve (12) to fourteen (14) French suction catheters for daily used

- iii. Four (4) Yankauer suction tips per month with one in reserve at all times
- iv. One (1) resuscitation bag with mask and oxygen tubing to be cleaned by the patient and/or Caregiver every seventh (7th) day with one in reserve at all times for continuous ventilation
- v. One (1) H or M size oxygen cylinder of oxygen or oxygen concentrator
- vi. One (1) suction pump with suction collection jar, non-sterile gloves, basin, normal saline solution. Four collection jars shall be provided per month, or more as necessary.
- vii. Trachea care supplies/trachea care kit that shall have at least a minimum of a 30-day supply

4.19 Stock Storage:

- A. The Contractor shall, upon request by the facility, stock portable set-ups at the VA to send home with patients and upon request by the facility, the Contractor shall stock replacement cylinders, regulators, and oxygen conserving devices for patients who deplete their portable units during appointments.
- B. The Contractor shall coordinate with the Prosthetics and Sensory Aids Service and Respiratory Therapy Services at each facility, for accountability and payment. As authorized, the Contractor shall deliver a portable set-up or refill for patient discharge at any local facility within a 2 hour timeframe.
- C. An adequate supply (to be determined by each facility) of aluminum/composite compressed O₂ tanks, with regulator, and E-tank stands shall be provided and stored at each participating VA listed in the Schedule and their respective Outpatient Clinics, except VA Palo Alto and VA Fresno, as directed by the COR. Quantities, and sizes of tanks, will vary from site to site and shall be agreed upon by the Contractor and facility COR.
- D. The reserve supply shall accommodate home oxygen Patients who are either being discharged from the hospital or visiting (appointments, etc.) and require a supply of oxygen to enable the VA Patient to reach home. Adequate inventory shall be maintained by the Contractor. Reserve supply shall be provided at no additional cost to the Government.
- E. The Contractor shall deliver required tanks to the hospital upon patient discharge or when Patients are waiting for appointments and are low on oxygen. In addition to delivery of oxygen for discharge and refills, the contracts shall perform all Patient set-ups as outlined in the PWS. Orders for additional tanks and discharge will be placed with the Contractor's local branch. Delivery shall be completed within two hours.

SECTION 5 - REQUIREMENTS AND STANDARDS

5.1 Site Visits:

Periodic, unscheduled on-site Contractor, home oxygen Patient, and Ventilator Patient visits shall be made by COR or designee to monitor the Contractor's performance under this contract. The Contractor shall make available (via encrypted email and fax) all records and documentation necessary during the monitoring visits to the COR or designee. Other visits shall be made by The Joint Commission or equivalent accrediting organization surveyors and the Home Oxygen Coordinator for each facility.

5.2 Qualifications of Contractor:

- A. Each branch office or distribution point shall meet or exceed The Joint Commission or equivalent standards. Any and all documentation related to the Patient record during the duration of this contract is the property of the VA and shall be returned to the facility's COR by the Contractor upon the termination or non-renewal of this contract.
- B. The Contractor's CRT/RRT or RN staff shall have at least two (2) years of experience in successfully administering basic home oxygen and ventilator services to adult and geriatric Patients. The Contractor shall be responsible for coordinating, supervising and evaluating the services provided.
- C. Contractor shall provide staff with documented competency training to deliver prescribed supplies/cylinders/liquid oxygen (LOX) as required to each Patient as needed. All Patients shall be visited at least every 90 days and all equipment in the home shall be maintained as recommended by the manufacturer. The Contractor shall provide the COR or designee with written documentation (via encrypted email and fax) no later than the 15th day of each month.
- D. Contractor shall adhere to the provision of Public Law 104-191, Health Insurance Portability and Accountability Act (HIPAA) of 1996 and the National Standards to Protect the Privacy and Security of Protected Health Information (PHI).
- E. The Contractor shall internally maintain a Patient account folder holding all documentation related to the supplies and services provided in compliance with the Privacy Act and Health Insurance Portability and Accountability Act (HIPAA). All Patient files are subject to review by designated VAMC officials and accreditation surveyors on behalf of the VAMC during accreditation surveys or consultation. At a minimum the Patient folder shall adhere to current Joint Commission or equivalent accrediting standards for patient record keeping.
- F. The Contractor shall develop, maintain, and make available for review, personnel folders for all employees performing under this contract.
- G. The Contractor shall provide initial and annual documentation of employee orientation, ongoing employee education, and ongoing assessment of employee competency for all employees involved with the delivery/recovery of equipment covered under this contract according to The Joint Commission or equivalent standards. The Contractor shall provide copies of personnel files to the facility COR or designee within 14 working days of the date the contract is awarded. Files for all newly hired staff shall be forwarded to the Contracting Officer and the COR or designee within 14 working days of the date of hire.
- H. The Contractor shall provide COR or their designee with a list of all employees currently competent to perform delivery/recovery and Patient education services at the time the contract is awarded. COR or their designee shall inspect employee files at the time of the inspection of Contractor premises and vehicles. Employee files shall be maintained at the local contract site.
- I. The Contractor shall educate, evaluate and document employee education in strict accordance with current Joint Commission or equivalent accreditation standards.

- J. Only Contractor and/or Subcontractor employees who have been properly trained and who have demonstrated competency shall perform equipment deliveries, recoveries, and Patient education on the equipment.

5.3 Conformity to Regulations:

The Contractor's employees shall conform to all regulations, Federal, State and local, governing the performance of contracted services in each state in which performance occurs. No vaping or electronic cigarettes are allowed on the VA premises.

5.4 Transition Period:

At the end of the contract period if a transition period is required, the incumbent Contractor shall continue to provide home oxygen supplies and services at the existing contract prices while the incoming Contractor prepares to transition over.

- A. Phase In: The incoming Contractor shall replace all appropriate VA authorized (incumbent Contractor-owned) equipment presently located in residences of Beneficiaries with the incoming Contractor's equipment as soon as possible after award, but not to exceed ninety (90) days from date of contract award. Incoming Contractor shall coordinate with the incumbent Contractor during the transition period relating to the removal of the incumbent Contractor's equipment from the Patient residences. The change shall include delivery, setup, and instruction as further specified herein, and shall be accomplished without disruption in supplies and services to the Veteran or the VA. Transition date of each Beneficiary shall be noted, to include the transfer of responsibility regarding Government Furnished Equipment (if applicable). The billing period shall begin on the noted transition date. Payments shall be assessed based on the providers established rate and prorated from setup date. Prorated monthly rates are based on a 30-day month.
- B. Phase Out: In accordance with FAR 52.237-3 Continuity of Services, the Contractor realizes that the services being provided under this contract are vital and must be continued uninterrupted. The outgoing Contractor shall not remove any equipment from the Beneficiary's residence until replacement equipment has been installed. The outgoing Contractor shall coordinate transition of equipment / services with the incoming Contractor as soon as possible, but not to exceed ninety (90) days from date of contract expiration. If additional transition time is required beyond contract expiration, the Contractor shall be paid on a pro-rated basis at the prices established for the last period of performance. Prorated monthly rates are based on a 30-day month.

5.5 Safety Requirements:

In the performance of this contract, the Contractor shall take such safety precautions as the Contracting Officer or the COR determines to be reasonably necessary to protect the lives and health of all persons affected by this contract. The Contracting Officer or COR shall notify the Contractor of any noncompliance with the foregoing provisions and the action to be taken. The Contractor shall, after receipt of such notice, immediately correct the conditions to which attention has been directed. Such notice, when served on the Contractor or his/her representative at the site of the work, shall be followed in writing within one business day. If the Contractor fails or refuses to comply with these safety requirements, the Contracting Officer may (as stated in FAR 52.212-4(m)) issue an order terminating all or any part of the work.

5.6 Vehicles:

The vehicles used in the performance of this contract shall be licensed and meet the minimum requirements as mandated by each state/county/city in which performance occurs. All vehicles shall be clearly identified with the Contractor's name and have a designated clean and dirty area that is clearly marked.

5.7 Evidence of Coverage:

Before commencing work under the contract, the Contractor shall furnish the Contracting Officer with a certification from his/her insurance companies indicating the coverages for this contract have been obtained and that it may not be changed or canceled without written notice within thirty (30) days to the Contracting Officer. Evidence of Coverage shall include:

- General Liability. Contractors are required to have Bodily Injury Liability Insurance coverage written on the comprehensive form of policy of at least \$500,000 per occurrence.
- Property Damage Liability. Contractors are required to have Property Damage Liability insurance coverage of at least \$500,000.
- Workmen's Compensation: Contractors are required to comply with applicable Federal and State Worker Compensation and occupational disease statutes. The Act of June 25, 1936, 42 Stat. 1938 (40 USC 290), authorizes the constituted authority of the several States to apply their workmen's compensation laws to all lands and premises owned or held by the United States. The Contractor agrees to procure and maintain, while the contract is in effect, Workmen's Compensation and Employers Public Liability Insurance. The policy shall provide coverage for Public Liability limits of not less than the statutory limitations for any one accident and at least meet the statutory limitations if more than one person is involved. The Contractor shall assume full responsibility for the protection of its personnel furnishing services under this contract, in accordance with the personnel policy of the Contractor, such as providing worker's compensation, professional liability insurance, health examinations, income tax withholding, and social security payments. The parties agree that the Contractor, its employees, agents, and Subcontractors shall not be considered VA employees for any purpose.

5.8 Infection Control Requirements:

- A. Contractor shall provide a current plan for surveillance, prevention, and control of infection at time of proposal submission. The plan shall meet or exceed current Joint Commission or equivalent standards.
- B. Contractor shall provide a list of names to the COR or designee of all Patients exposed to communicable diseases by contracted staff during an identified incubation period within 24 hours of identifying this exposure. The type of exposure shall also be identified in the notification.
- C. The COR or their designee shall consult with VA infection control staff regarding the need to contact exposed Patients and/or complete any needed medical follow-up.

5.9 Standard Precautions:

Standard precautions shall be used to prevent exposure to blood borne diseases when handling all contaminated equipment/items. Gloves shall be worn when handling items soiled with blood and/or body fluids. Hands shall be washed before and after visiting each Patient and when gloves are removed.

Contaminated equipment shall be separated from clean equipment. The Contractor's warehouse shall have clear demarcation between contaminated and clean storage areas. Delivery vehicles, if dirty and clean equipment is transported in the same vehicle, shall have a clearly demarcated area for clean and dirty items. Contractor's procedure for handling the pickup of dirty equipment shall meet or exceed The Joint Commission or equivalent standards.

5.10 Standards and Guidelines Reference:

- A. American Association for Respiratory Care (www.aarc.org)
- B. American Society for Testing Materials (ASTM) minimum standards specification for electrically powered home care portable ventilators (www.astm.org)
- C. Association for the Advancement of Medical Instrumentation (AAMI) (www.aami.org)
- D. The Joint Commission Standard for Home Care, current year standard.
(www.JointCommission.org)
- E. Appropriate state board for licensed professionals
- F. The American Respiratory Care Foundations for Respiratory Equipment Used in the Home

VHA Handbook 1173.13 Home Respiratory Care Program

http://www1.va.gov/vhapublications/ViewPublication.asp?pub_ID=349

SECTION C - CONTRACT CLAUSES

C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul>

<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT ALTERNATE I (NOV 2021)	JUN 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (DEVIATION NOV 2025)	OCT 2018
52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (DEVIATION NOV 2025)	JAN 2025
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (DEVIATION NOV 2025)	OCT 2018
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (DEVIATION NOV 2025)	NOV 2015
52.219-14	LIMITATIONS ON SUBCONTRACTING (DEVIATION NOV 2025)	OCT 2022
52.222-3	CONVICT LABOR (DEVIATION NOV 2025)	JUN 2003
52.222-19	CHILD LABOR—COOPERATION WITH AUTHORITIES AND REMEDIES (DEVIATION NOV 2025)	JAN 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION NOV 2025)	JUN 2020
52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION NOV 2025)	JUN 2020
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION NOV 2025)	JUN 2020
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION NOV 2025)	DEC 2010
52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION NOV 2025)	OCT 2025
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.229-3	FEDERAL, STATE, AND LOCAL TAXES (DEVIATION)	SEP 2025
52.229-4	FEDERAL, STATE, AND LOCAL TAXES (STATE AND LOCAL ADJUSTMENTS) (DEVIATION)	SEP 2025

52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER— SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.233-3	PROTEST AFTER AWARD (DEVIATION NOV 2025)	AUG 1996
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (DEVIATION NOV 2025)	OCT 2004
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION OCT 2025)	JAN 2025
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.211-76	LIQUIDATED DAMAGES - REIMBURSEMENT FOR DATA BREACH COSTS	FEB 2023
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.246-71	REJECTED GOODS	OCT 2018

C.2 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)(DEVIATION OCT 2025)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in

accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

- (1) Notify the Contracting Officer in writing as soon as possible;
- (2) Remedy the delay as quickly as possible; and
- (3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment—

- (1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.
- (2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.
- (3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.
- (4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

- (i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

- (A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

- (B) Affected contract number and delivery order number, if applicable;
- (C) Affected line item or subline item, if applicable;
- (D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on–

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

- (i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.3 52.216-18 ORDERING (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 4/1/2026 through 3/31/2028.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of Clause)

C.4 52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$1,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor—

(1) Any order for a single item in excess of \$1,500,000.00;

(2) Any order for a combination of items in excess of \$9,000,000.00; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 3 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

C.5 52.216-22 INDEFINITE QUANTITY (DEVIATION) (NOV 2025)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after 9/30/2028.

(End of Clause)

C.6 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days of expiration date.

(End of Clause)

C.7 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence

or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not

covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if

OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services

produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was

provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

C.8 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

C.9 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VA Acquisition Regulation (VAAR) (48 CFR Chapter 8) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

(End of Addendum to 52.212-4)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

See attached document: Quality Assurance Surveillance Plan.

See attached document: Home Oxygen Line Items.

SECTION E - SOLICITATION PROVISIONS

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul>
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT (DEVIATION NOV 2025)	NOV 2024
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (DEVIATION SEP 2025)	JUN 2020
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	OCT 2018

E.2 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)(DEVIATION OCT 2025)

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

- (3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.
- (4) A summary of the rationale for award.
- (5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.
- (6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of Provision)

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

1. The offeror shall submit all required documentation including:
 - a. Signed page 1 of the SF1449 Solicitation and any amendments (if applicable)
 - b. Pricing completed on B.2 Pricing/Cost Schedule (spreadsheet)

E.3 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)(DEVIATION NOV 2025)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in–

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

E.4 52.216-1 TYPE OF CONTRACT (DEVIATION) (NOV 2025)

The Government contemplates award of a Firm-Fixed-Price Indefinite Delivery Indefinite Quantity contract resulting from this solicitation.

(End of Provision)

E.5 52.233-2 SERVICE OF PROTEST (SEP 2006)(DEVIATION NOV 2025)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

E.6 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.

(b) The use in this solicitation of any VA Acquisition Regulation (VAAR) Acquisition Regulation (48 CFR Chapter 8) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

(End of Addendum to 52.212-1)

E.7 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)(DEVIATION OCT 2025)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Price

(b) Evaluations of Options. For purposes of award of this Contract, the Government intends to evaluate the option to extend services under FAR 52.217-8 as follows: The evaluation will consider the possibility that the option can be exercised at any time and can be exercised in increments of one to six months, but not for more than a total of six months during the life of the contract. The evaluation will assume that the prices for any option exercised under FAR 52.217-8 will be those rates in effect under the contract each time an option is exercised under this clause. The evaluation will therefore assume that the addition of the price or prices of any possible extension or extensions under FAR 52.217-8 to the total price for the basic requirement and the total price for the priced options has the same effect on the total price of all proposals relative to each other, and will not affect the ranking of proposals based on price, unless, after reviewing the proposals, the Government determines that there is a basis for finding otherwise. This evaluation will not obligate the Government to exercise any option under FAR 52.217-8.

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)